



File No.: EXP202305384

RESOLUTION OF RIGHTS PROCEDURE

Having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: Ms. A.A.A. (hereinafter, the claimant) exercised the right of access before CONSULTING PERICIAL DE RIESGOS, S.L. (hereinafter, the respondent) without her request having received the legally established response.

Ms. A.A.A. (hereinafter, the claimant) states that, following the reporting of an incident that occurred in her home, the insurance entity appointed CONSULTING PERICIAL DE RIESGOS, S.L. (hereinafter, the respondent) to carry out the assessment of the damages in her home.

After conducting the corresponding visit and taking various photographs of the interior of the home, the respondent requested the provision of additional documentation (copy of the ID of the policyholder, bank account number, proof of payment of the insurance, copy of the current policy, and receipt of the policy showing the breakdown of the consortium premium) in order to continue with the processing of the file, as otherwise the file would be annulled without compensation.

Following this request, on January 26, 2022, the claimant indicated that she would provide the requested documentation "once we receive the list and the photographs," receiving a response (on the same date) indicating the following: "We inform you that both the photographs taken by the expert and the notes made are personal and non-transferable."

The claimant provided the required information and, on August 5, 2022, requested the respondent to provide information regarding the expert report and, in particular, the photographs taken of the interior of her home, as well as access to her personal data subject to processing, without having received a response within the legally established timeframe.

Along with the complaint, she submitted a thread of emails exchanged with the respondent (from January 26 to May 27, 2022) related to the request for documentation and its provision, as well as the request for the photographs taken and the response to that request. She also submitted a copy of the completed form related to the right of access and a copy of the request for access to the expert report and, in particular, to the photographs taken in the home, as well as proof of sending and acknowledgment of receipt dated August 5, 2022.

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SECOND: In accordance with Article 65.4 of the LOPDGDD, the aforementioned complaint was forwarded to the party being complained against, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The party being complained against states that the requested photographs were taken at the request of the complainant (owner and insured) and in her presence, to document the claimed damages, as the state of the affected items required their removal and subsequent repairs, showing us the different affected areas of the residence. They assert that they have been aware of and have documentation regarding the complete assessment of the damages before proceeding with the closure.

They indicate that this report was specifically requested by the organization Consorcio Compensación de Seguros, which sought the services of the office of the party being complained against, and therefore, it was delivered in a proprietary manner, meaning that any request made by the insured should not be directed to this office.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claims of the complainant were satisfied. Consequently, on May 22, 2023, for

the purposes provided in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the party being complained against a hearing procedure, so that within ten working days they could present any allegations they deemed appropriate, stating, in summary, that "(...) it should be noted that the expert report was requested by the CONSORCIO COMPENSACIÓN DE SEGUROS requesting the services of this office as an external provider, so the report was delivered in a proprietary and contractual manner, allowing the party being complained against to exercise the remaining rights regarding data protection (rectification, opposition, deletion, portability, and limitation), by communicating with the Data Protection Officer of the Consorcio de Compensación de Seguros at ***EMAIL.1, or by postal mail to ***ADDRESS.1.

We attach the response from the CONSORCIO COMPENSACIÓN DE SEGUROS issued to the complainant regarding the exercise of access rights."

In this response, they provide their personal data and indicate that the assigned assessment office for their claim, Consulting Pericial de Riesgos S.L., is an external provider of the Consorcio de Compensación de Seguros acting as the data processor. They also state that the Consorcio de Compensación de Seguros became aware of their request on June 5, 2023.

FOURTH: After examining the document submitted by the party being complained against, it is forwarded to the complainant, so that, within ten working days, they may formulate any allegations they consider appropriate, stating, in summary, "(...) Regarding the possible non-compliance of Consulting Pericial de Riesgos S.L., we understand that non-compliance is occurring both as a data processor concerning the data provided by CCS (having responded as the data controller) as well as...

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responsible due to its direct data request, regarding which it has not yet responded to the access request, thereby repeatedly preventing the request for rectification and cancellation of data."

FIFTH: Having granted a hearing to the accused party, it states that

"(...) to add to what has been stated to date, and based on the conversations held regarding the matter in reference with the Compensation Consortium of Insurance, the following allegation is presented, being the result of mutual agreement between this office that subscribes and said organization:

Regardless of whether Consulting Pericial de Riesgos S.L. collects personal data directly from the claimant, this entity positions itself in any case as the data processor, with the Compensation Consortium of Insurance being the data controller.

The Compensation Consortium of Insurance has informed the insured's mediator, at the time of collecting their data when registering the corresponding claim, as well as the insured party itself, in subsequent communications during the processing of the file, about the conditions of the processing of their personal data in accordance with the provisions of Article 13 of Regulation (EU) 2016/679 General Data Protection Regulation (GDPR). In the mentioned informative notice, it is made known to the claimant that their personal data will be processed, primarily, for the purpose of managing the claims file, as well as the possibility of access to their personal data by damage assessment providers, in their capacity as data processors.

The Compensation Consortium of Insurance and Consulting Pericial de Riesgos S.L. have signed the relevant personal data processing agreement in accordance with Article 28 GDPR, which includes the guarantees and security measures that the data processor must apply, among which are the duties of confidentiality. The reference to the "personal" use of the images by Consulting Pericial de Riesgos S.L., in no case has a literal meaning, but it was intended to convey to the claimant that the images were under confidentiality duties related to the provision of valuation services to the Compensation Consortium of Insurance and, consequently, they were not authorized to make them available to the claimant."

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD establishes that "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent party for analysis, requiring a response to this Agency within one month and proof of having provided the complainant with the appropriate response.

The result of this forwarding did not allow for the satisfaction of the complainant's claims.

Consequently, on May 22, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure for failure to respond to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states: "When the procedure refers exclusively to the failure to respond to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld."

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers to address any infringement of the GDPR, including "ordering the data controller or processor to...

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address the requests for the exercise of the rights of the data subject under this Regulation.

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the

GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must express its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of access

In accordance with Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be considered granted if the data controller provides remote access to the data, thus fulfilling the request (although the data subject may request the information referred to in the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for doing so.

On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decision-making, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

V

Processor

Article 28.3 of the GDPR, Processor, states:

"3. The processing by the processor shall be governed by a contract or other legal act under Union law or the law of the Member States, which binds the processor to the controller and establishes the subject matter, duration, nature, and purpose of the processing, the type of personal data and categories of data subjects, and the obligations and rights of the controller. Such contract or legal act shall stipulate, in particular, that the processor:

a) shall process the personal data only on documented instructions from the controller, including with regard to the transfers of personal data to a third country or an international organization, unless required to do so by Union law or the law of the Member States applicable to the processor; in such a case, the processor shall inform the controller of that legal requirement before the processing, unless

that law prohibits such information on important grounds of public interest;

b) shall ensure that persons authorized to process personal data have committed themselves to confidentiality or are under an appropriate statutory obligation of confidentiality;

c) shall take all necessary measures in accordance with Article 32;

d) shall respect the conditions laid down in paragraphs 2 and 4 for engaging another processor;

e) shall assist the controller, taking into account the nature of the processing, by means of appropriate technical and organizational measures, insofar as this is possible, to ensure that this...

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may fulfill its obligation to respond to requests aimed at exercising the rights of the data subjects established in Chapter III;

f) will assist the controller in ensuring compliance with the obligations established in Articles 32 to 36, taking into account the nature of the processing and the information available to the processor;

g) at the controller's choice, will delete or return all personal data once the provision of processing services has ended, and will delete existing copies unless the retention of personal data is required under Union or Member State law;

h) will make available to the controller all necessary information to demonstrate compliance with the obligations established in this article, as well as to enable and contribute to audits, including inspections, by the controller or another auditor authorized by the controller."

Furthermore, Article 33 of the LOPDGDD, Processor, establishes

1. Access by a processor to personal data necessary for providing a service to the controller shall not be considered a communication of data as long as the provisions of Regulation (EU) 2016/679, this organic law, and its implementing regulations are met.

2. A person acting in their own name and without evidence of acting on behalf of another, who establishes relationships with data subjects, shall be considered a controller and not a processor, even if there is a contract or legal act with the content set forth in Article 28.3 of Regulation (EU) 2016/679. This provision shall not apply to processing assignments made under public sector procurement legislation.

A person who, while acting as a processor, uses the data for their own purposes shall also be considered a controller.

3. The controller shall determine whether, upon the conclusion of the processor's services, the personal data must be destroyed, returned to the controller, or delivered, if applicable, to a new processor.

Destruction of the data shall not proceed when there is a legal provision requiring its retention, in which case it must be returned to the controller, who will ensure its retention as long as such obligation persists.

4. The processor may retain, duly blocked, the data as long as there may be liabilities arising from their relationship with the controller.

5. In the public sector, the competencies of a processor may be attributed to a specific body of the General State Administration, the Administration of the autonomous communities, the entities that comprise the Local Administration, or to the bodies linked or dependent on them by adopting a regulatory standard for such competencies, which must incorporate the content required by Article 28.3 of Regulation (EU) 2016/679."

VI

Conclusion

In the case analyzed here, the complaining party exercised their right of access before the complained party, which, as stated during the processing of this procedure, is an external provider contracted by CONSORCIO COMPENSACIÓN DE SEGUROS, and the complaining party may direct their request to this latter entity to exercise their rights.

They also attach a copy of the response sent by CONSORCIO COMPENSACIÓN DE SEGUROS to

the complaining party regarding the exercised right.

Consequently, as derived from the aforementioned regulations, especially Article 28.3.e) of the GDPR, the complained party forwarded the request of the complaining party to the controller to address their right. Therefore, the complaint presented should be dismissed.

The complaining party has the option, if it suits their rights, to directly contact the controller to exercise the rights regulated in the data protection regulations.

In view of the cited provisions and other generally applicable ones, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the complaint filed by Ms. A.A.A. against CONSULTING PERICIAL DE RIESGOS, S.L.

SECOND: TO NOTIFY this resolution to Ms. A.A.A. and to CONSULTING PERICIAL DE RIESGOS, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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